

2022 P L C (C.S.) 319

[Lahore High Court]

Before Jawad Hassan and Sultan Tanvir Ahmed, JJ

NADEEM ABBAS

Versus

PUNJAB PUBLIC SERVICE COMMISSION and others

Intra Court Appeal No.50364 of 2021, decided on 16th August, 2021.

Punjab Public Service Commission Regulations, 2016---

---Regln. 26---Action against candidates for using unfair means---Non-mentioning the fact of previous service---Scope---Appellant applied through online application for the post of Sub-Inspector and subsequently was recommended for the post---Thereafter, his candidature was cancelled due to non-disclosure about his previous government service and non-providing of "No Objection Certificate"---Specific ground was agitated by the appellant that not mentioning about previous job in online application form was not a wilful concealment rather it was only a mistake---Regulation 26 of the Punjab Public Service Commission Regulations, 2016, clearly demonstrated that if at any stage during the process of selection or even after the recommendations had been sent to the concerned department, a person was found to be deficient in any of the conditionalities of the eligibility, his or her candidature shall be cancelled and recommendations withdrawn---Since appellant had concealed the material information from the respondents, though he had provided NOC at a later stage, but the fact remained that he had withheld information which was important and mandatory for the post applied---Impugned order did not warrant interference by the Division Bench---Intra court appeal was dismissed.

Niazi Khan for Appellant.

Barrister Umair Khan Niazi, Additional Advocate General for Respondents.

ORDER

Through this Intra Court Appeal filed under Section 3 of the Law Reforms Ordinance, 1972 (the "Ordinance"), the Appellant has challenged the validity of order dated 28.07.2021 (the "Impugned Order") passed in Writ Petition No.47426 of 2021 by the learned Single Judge whereby the Constitutional petition filed by the Appellant was dismissed.

2. Learned counsel for the Appellant inter alia contended that the impugned order is against the law and facts; that the impugned order is the result of mis-reading and non-reading of record; that the Appellate was not treated in accordance with law; that while

passing impugned order learned Single Judge-in-Chamber has ignored that the Appellant was recommended by the Punjab Public Service Commission however, his candidature was cancelled; that the learned Single Judge-in-Chamber has also failed to appreciate law on the point in its true perspective as such the same is liable to be set aside.

3. On the other hand, learned Law Officer vehemently opposed the arguments advanced by the learned counsel for the Appellant and prayed for dismissal of the Appeal on the ground that the impugned order has been passed strictly in accordance with law as such does not call for any interference by this Division Bench.

4. We have heard the arguments and have perused the record.

5. The question that looms large before us is whether a candidate, who concealed and suppressed required information by not filling in the requisite column of application form, can seek invalidation of action of the Respondents in cancelling his candidature or not.? It evinces from the record that the Appellant applied through online application for the post of Sub-Inspector and subsequently was recommended for the said post. Thereafter, his candidature was cancelled due to non-disclosure about his previous Government Service and non-providing of No Objection Certificate. A specific ground was agitated by the Appellant that non-mentioning about previous job in online application form is not a wilful concealment rather it was only a mistake. In the impugned order, learned Single Judge in Chamber has observed that "the Petitioner was confronted with the same and was given an opportunity of hearing where he admitted that he is a government employee". For the sake of arguments, if the stance of the Appellant is admitted as correct, even then he had not disclosed the factum of his previous job during whole process of selection which was started in the year 2019. Regulation 26 of the PPSC Regulation, 2016 clearly demonstrates that "if at any stage, i.e. during the process of selection or even after the recommendations have been sent to the concerned Department, a person has been found to be deficient in any of the conditionalities of the eligibility, his or her candidature shall be cancelled and recommendations (if sent) withdrawn".

6. In view of above, we are of the considered view that since the Appellant has concealed the material information from the Respondents about his previous job while submitting his online application form, though he provided NOC at a later stage, but the fact remains that he knowing fully has withheld the information which is important and mandatory for the post applied.

7. We fully agree with the finding of the learned Single Judge who dismissed the petition and see no illegality or perversity in the impugned order which has been passed in line with the dictates of law and does not warrant any interference by this Division Bench.

8. Resultantly, the instant Appeal, being bereft of any force, is accordingly dismissed in limine.

SA/N-26/L

Appeal dismissed.